

PROJECT NAME
PROJECT NAME
PROJECT NAME

COMMERCIAL PROPOSAL

2024-11-15



REVISION HISTORY

REV 0 / 2024.04.12/ J.HENCKENS

VALIDITY: 90 DAYS (10TH JULY 2024)

Mr. OOOOOOO
Position
COMPANY NAME .
ADDRESS,
CITY, COUNTRY - POST CODE

DATE

Re: Technical & Commercial Proposal for OOOOOOOOOOOO.

Dear Mr. OOOO,

In response to your kind invitation, we thank you for the opportunity, it is our pleasure to submit herewith our proposal for the aforementioned project.

We look forward to hearing from you, do not hesitate to contact us if you have any questions or require any further information or would like to discuss any aspect of our offer.

We hope our offer will meet your expectations and look forward to the opportunity to work together on this exciting project.

Sincerely,

Wataru Tanaka

Senior Executive Officer
Head of Global Business Department
Principal, Global Business Development Group
Principal, International Office Management Group
Nikken Sekkei Ltd



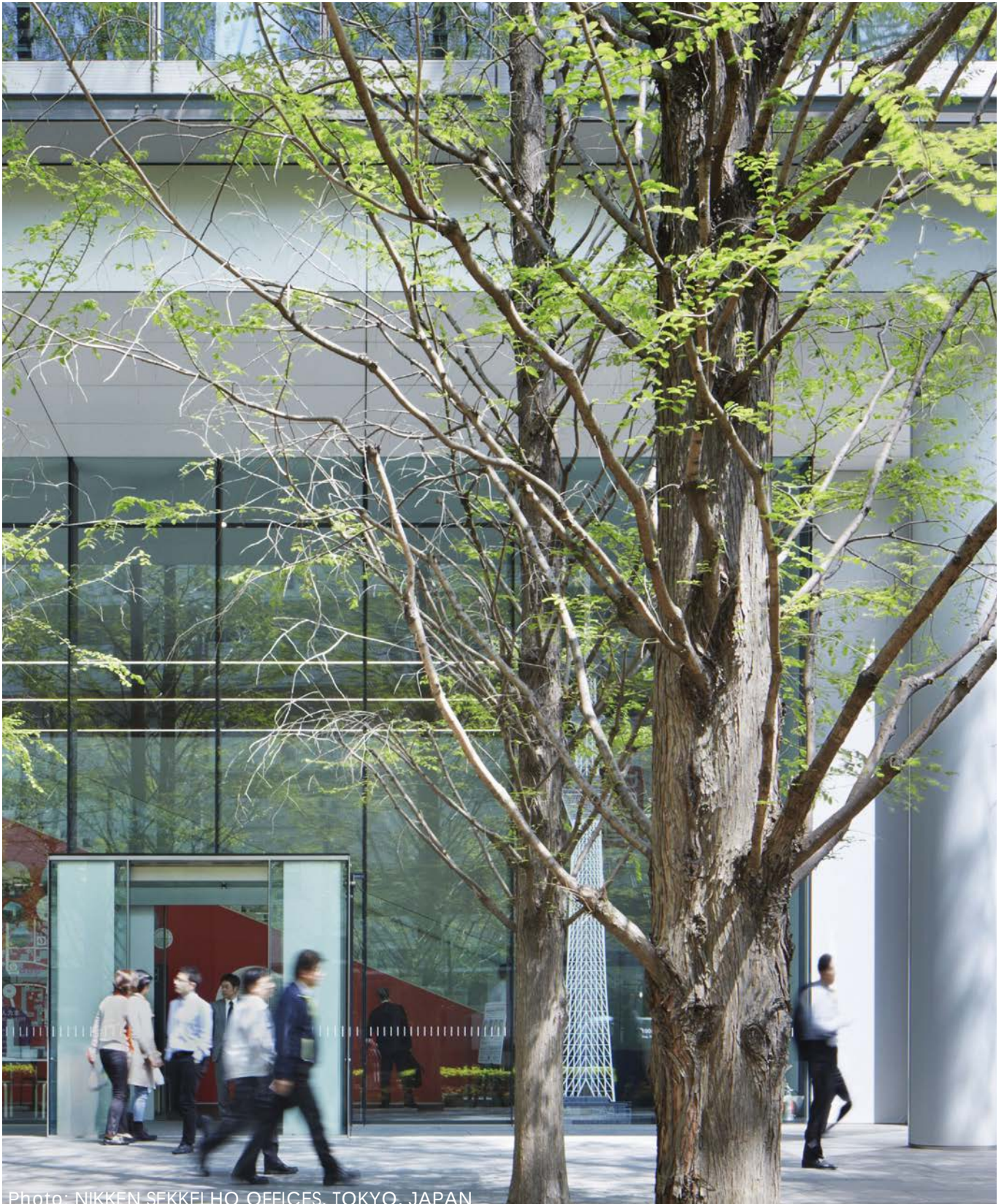


Photo: NIKKEN SEKKEI HO OFFICES, TOKYO, JAPAN

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SAMPLE IMAGES



TOTAL PAYMENT

In consideration of the information provided and subject to the conditions and assumptions outlined in Terms and Conditions, we offer to perform the consultancy services in relation to this project for the Fee stated below.

TOTAL PAYMENT	USD 000,000*
	Excluding any local taxes and travel expenses.

* Terms and Conditions apply

Fee conditions:

1. The currency of fees considered is US Dollar. Unless and until mutually decided would continue to remain the same.
2. The above stated fees are net receivable inclusive of all taxes in Japan and do not include taxes and levies imposed in India (GST as well as Withholding Tax to be paid by client side in addition to above mentioned fees)
3. Payment shall be made to the consultant's designated bank account in Japan within 21 days after Client receives the invoice.
4. Only 02 (two) out of Tokyo Workshop has been considered in the fee proposal. Travel and accommodation expenses would be over and above the above stated professional fees and would be incurred by the client based on direct Business Class airfare and 4-5star hotel lodging for 3 nights. Based on the client request the man-trips can be increased which would correspondingly increase the reimbursable with regards to travel expenses and associated expenses.
5. Professional Final Model and Animation can be provided as optional services with additional cost and can be discussed post appointment
6. Specialty consultant fees including local consultant, surveys, cost consulting and authority consultation are not included in the above fees.
7. For additional details read Terms & Conditions in Section 6. Additional Information.

SAMPLE IMAGES



PAYMENT SCHEDULE

NO.	PAYMENT	DUE UPON	AMOUNT NET RECEIVED	AMOUNT PAID Incl. WHT	%	% CUMU- LATIVE
1	Mobilization	Signature of Contract, Pre-Condition to Commencing Services	100	105	10%	10%
2	Pre-Concept	Pre-Concept Design Submission.	100	105	10%	20%
3	Concept Design 50%	Mid-Concept Workshop Completion	100	105	10%	30%
4	Concept Design 100%	Concept Design Submission (Architecture)	100	105	10%	40%
5	Concept Design (Interior Design)	Concept Design Submission (Interior)	100	105	10%	50%
6	Schematic Design 50%	Mid SD Workshop Completion	100	105	10%	60%
7	Schematic Design 100%	Schematic Design Submission (Architecture)	100	105	10%	70%
8	Schematic Design (Interior Design)	Schematic Design Submission (Interior)	100	105	10%	80%
9	DD Review 50%	Submission of Feedback on Interim DD Reivew	100	105	10%	90%
10	DD Review 100%	Submission of Feedback on Interim DD Reivew	100	105	10%	100%
		TOTAL	1000	1050	100%	100%



FEE BREAKDOWN-1

STAGE	MILESTONES	USD	% of Total
0	MOBILIZATION	10,000	10%
1	PRE CONCEPT DESIGN	10,000	10%
2	CONCEPT DESIGN	25,000	25%
3	SCHEMATIC DESIGN	25,000	25%
4	DETAILED DESIGN	20,000	20%
5	TENDER DOCUMENTS	10,000	10%
		100,000	100%



FEE BREAKDOWN-2

STAGE	MILESTONES	WORK DURATION Excl. Client Review Period	Payment Terms	USD	% of Total
0	Mobilization		Upon signing the agreement	20,000	20%
1	Workshop-01 (WS-01) Kick off Meeting	00 WEEKS (+) Weeks Client Review	Work to begin upon receiving payment of mobilization	-	-
2	Workshop-02 (WS-02) Design Alternatives Meeting	00 WEEKS (+) Weeks Client Review	Upon Presentation and Submission of Options.	25,000	25%
3	Workshop-03 (WS-03) Design Refinement Meeting	00 WEEKS (+) Weeks Client Review	Upon Presentation and Submission of Revised Options	35,000	35%
4	Final Presentation & Submission Finalization & Production	00 WEEKS (+) Weeks Client Review	Upon Presentation and Submission of Developed Options	20,000	20%
GRAND TOTAL (USD) Excluding Taxes and Travel Expenses				100,000	100%



TRAVEL EXPENSES

NO.	EVENTS	ROUTE (Roundtrip)	NUMBER OF PERSON	NUMBER OF DAYS	Budget Per Person (SAR)	Sub Total
1	Kick-Off Workshop	TOKYO ↔ RIYADH	3	3	35,000	105,000
2	Workshop-01	TOKYO ↔ RIYADH	3	3	35,000	105,000
3	Workshop-02	TOKYO ↔ RIYADH	3	3	35,000	105,000
4	Workshop-03	TOKYO ↔ RIYADH	3	3	35,000	105,000
3	Workshop-04	TOKYO ↔ RIYADH	3	3	35,000	105,000
4	Workshop-05	TOKYO ↔ RIYADH	3	3	35,000	105,000
5	Workshop-06	TOKYO ↔ RIYADH	3	3	35,000	105,000



Tokyo-Riyadh-Tokyo
Etihad Business Class
25,000 SAR / trip + 15% Management Fee



min. 4-star Hotel
Breakfast & Internet included
1,000 SAR / night + 15% Management Fee



Daily Allowance
SAR 300 / person * day

SAMPLE IMAGES



RATES

No.	POSITION	HOURLY [SAR]	DAILY [SAR]	WEEKLY [SAR]	MONTHLY [SAR]
1	EXECUTIVE ARCHITECT	1,163	9,300	46,500	204,600
2	CHIEF ARCHITECT	1,038	8,300	41,500	182,600
3	SENIOR ARCHITECT	925	7,400	37,000	162,800
4	ARCHITECT	825	6,600	33,000	145,200
5	ARCHITECTURAL DESIGNER	650	5,200	26,000	114,400
6	SENIOR PROJECT MANAGER	1,038	8,300	41,500	182,600
7	PROJECT MANAGER	925	7,400	37,000	162,800
8	DOCUMENT CONTROLLER	513	4,100	20,500	90,200
9	CHIEF ENGINEER (S, M, E, ETC)	1,038	8,300	41,500	182,600
10	SENIOR ENGINEER (S, M, E, ETC)	925	7,400	37,000	162,800
11	ENGINEER (S, M, E, ETC)	650	5,200	26,000	114,400
12	SENIOR RENDERING ARTIST	925	7,400	37,000	162,800
13	ASSIST. RENDERING ARTIST	650	5,200	26,000	114,400
14	RENDERING ARTIST	513	4,100	20,500	90,200
15	SENIOR DOCUMENT DESIGNER	925	7,400	37,000	162,800
16	ASSIST. DOCUMENT DESIGNER	650	5,200	26,000	114,400
17	DOCUMENT DESIGNER	513	4,100	20,500	90,200

1. All rates are exclusive of KSA VAT
2. Rates are valid for regular 8-hour working days, 5-day work weeks
Work on bank holidays, weekends and outside regular working hours
3. We reserve the right to review rates on an annual basis



Scale Model produced for
Puteri Sentral Master Plan Competition

ADDITIONAL SERVICES

Additional / Reimbursable Items

Presentation Model

Whilst working / study models will be provided throughout the services as necessary, presentation grade model(s) will be provided upon request and upon agreement on the size, level of detail and other requirements. Our offer will consist of the model builder's fee plus an overhead of 10% plus Nikken staff man-hours required for the planning and review of the model build.

Additional Animation

Animations will be provided upon request and upon agreement on the duration, level of detail and artistic intent. Our offer will consist of the animation production (specialist) fee plus an overhead of 10% plus Nikken staff man-hours required for the planning, review and arrangement of the animation.

Note for budgeting purposes: one minute of a professional narrated animation will be charged at approx. SAR 120,000 (+tax). Cheaper options are available if the respective quality is acceptable.

Additional renderings

Additional renderings can be provided upon request. Our offer will consist of the production plus an overhead of 10% plus Nikken man-hours required for the planning and review of the same. Note for budgeting purposes: one professional top-quality rendering will be charged at approx. SAR 20,000 (+tax). Cheaper options are available if the respective quality is acceptable.

Additional Hardcopy submissions

Hardcopy of brochures, drawings beyond the number included in this Proposal will be provided reimbursable at net cost. Applicable Courier charges shall also be reimbursed if hardcopy is to be mailed.

Additional attendance / travel

Additional travel if requested by the Client shall be reimbursed at net cost based on the following conditions

- a) Business class airfare;
- b) Accommodation in 4-star+ properties;
- c) allowance for petty expenses / person / day of SAR 375



TERMS & CONDITIONS

1	“(The) Consultant”	Refers to Nikken Sekkei Ltd
2	“(The) Client”	Refers to [NAME of entity contracting with Nikken]
3	“(The) Party / Parties	Refers to the Consultant and the Client or both of them as the context requires
4	“(The) Project”	Refers to [PROJECT NAME]
5	“(The) Territory”	[COUNTRY in which the project is located]
6	“(The) Services”	The fee(s) offered in the proposal document to which these terms and conditions are attached
7	“(The) Fee”	The fee(s) offered in the proposal document to which these terms and conditions are attached
8	“(The) Proposal”	The collective set of documents describing the proposed design, scope and fee.
9	“day” or “days”	Shall mean calendar days, in accordance with the Gregorian calendar, unless otherwise stated.

GENERAL

- 1. Conditions of Contract** - These terms and conditions shall apply to all of the Services carried out by the Consultant on behalf of the Client as defined in the Proposal. They shall constitute the sole and entire agreement between the Consultant and the Client until such time as they are replaced by a written, agreed, signed subsequent Consultancy Agreement.
- 2. Entire Scope** – The Proposal is based on the award of the full scope as defined in the same. If only part of the scope is awarded, we reserve the right to re-assess fees associated with that part.
- 3. Language** – the ruling language of the agreement as well as the language for communications between the Parties shall be English.
- 4. Building Code** – The Project will be designed in compliance with the [International Building Code (IBC)]. Compliance with Saudi Building Code (“SBC”) is assumed to be achieved by the Client reviewing the design as it progresses and informing Nikken as may be necessary as to deviations or restrictions that require amendments to the design.
- 5. Authority approvals** – It is assumed that the Client will act as the Architect of Record and as such will be preparing all relevant submissions to obtain required permit(s) from all applicable authorities.
- 6. License** – While the Consultant and all its specialist sub consultants are properly licensed for their profession in their countries of residence, the Consultant does not hold a professional (architectural / engineering) license in the Kingdom of Saudi Arabia.

The Fee is offered on the basis of the Client accepting this and no license being required on our part to make submissions to authorities. Costs associated with the obtaining of professional and/or business licenses in KSA are excluded from the Fee and, if found to be necessary will be added to the same.

- 7. Unforeseeable issues** – Whilst the Consultant presents a lump sum fee as requested the Consultant considers it has to be acknowledged that due to the unprecedented unique nature of the project there may be issues arising during the design that were genuinely unforeseeable which may necessitate additional scope, time or studies.

In such case the Consultant reserves the right to raise the issue and request reasonable adjustments.

PAYMENT

- 8. Duration for payment** – The Client shall make payment against submitted invoices within 30 days from receipt of the same.
- 9. Certification** – The Client shall issue to the Consultant a notice if it intends to pay less than the full sum stated in any invoice. This notice shall be issued at least five (5) Days before the due date for the payment and shall specify:
- a. the sum that the Client considers to be due on the date the notice is served; and
 - b. the basis on which that sum is calculated.

Payment in full in the specified amount of each invoice must be received by Consultant, without any reduction on the basis of taxes, government fees, bank fees, or currency conversion costs.

- 10. Payment delay** - If an undisputed payment is more than 14 days overdue, the Consultant reserves the right, without prejudice to other rights under the agreement, to, upon 7 days' notice, suspend work until payment is received

INTELLECTUAL PRPerty RIGHTS

- 11. Intellectual property rights** of all documents produced for the Project shall remain with the Consultant. Contingent on the Client's full and timely payment of all sums due under the agreement, the Client is granted royalty-free license to the same only for the intended purpose of the Project.

The Consultant reserves the right to publish Project images or photographs of the completed Project, for purposes of the Consultant's own marketing, subject to obtaining the Client's authorization, which shall not be unreasonably withheld.

LIABILITY & INSURANCE

- 12. Standard of Care** – Notwithstanding anything else in this Proposal, or any legal requirement of the Country in which the Project is located or any other jurisdiction, the Consultant shall have no other responsibility than to exercise that level of reasonable skill, care and diligence in the performance of its obligations under the Agreement generally prevailing among engineers performing similar services under similar conditions.

The Consultant's design shall be prepared to define the final, completed condition of the Project. The Consultant's Services do not include design or review of temporary works, construction safety programs, or construction means, methods, techniques, sequences, or procedures, or intermediate stages of completion during construction of the Project.

- 13. Limitation of Liability** – The Consultant shall only be liable to pay damages to the Client arising out of or in connection with this Agreement to the extent that such damages are caused by, and in proportion to, a breach of the Standard of Care.

The Consultant's liability arising out of the performance of the Services shall be limited to

- a. re-performance of any portion of the Services to correct the breach or
- b. the direct consequences of such breach where such breach was reported to the Consultant in writing within the agreed duration of liability.

The aggregate amount of liability of the Consultant on this Project shall not exceed the total fee amount OR the accepted limit of a project-specific Professional Indemnity Insurance, as per Clause 14, whichever is less.

The Consultant shall not be liable for any loss of profit, loss of revenue, loss of use of any facilities, or loss of product or production or any indirect or consequential losses howsoever arising. Any damages shall be limited to amounts reasonably foreseeable and shall not include, and the parties expressly waive, any punitive, special, indirect or consequential damages including, but not limited to, any delays damages, loss of future revenue, income or profits or any diminution of value, financing costs or costs of lost opportunities relating to this Agreement, the Services or the Project, whether or not the possibility

of such damages has been disclosed to the other party in advance or could have been reasonably foreseen by such other party.

- 14. Insurance** – The Consultant maintains Professional Indemnity Insurance covering all its regular work, however due to the unique nature of the Project considers it necessary to purchase project-specific insurance in accordance with requirements to be agreed with the Client. Fees herein do not allow for project specific PI or other insurance(s), cost of such insurance(s) shall be added to the fee proposed with this proposal or born directly by the Client. The same extends to the Consultant's employed sub consultants.

For the avoidance of doubt, it is assumed that the Client is a private enterprise and as such is not subject to the Saudi [Government Tenders and Procurement Law].

- 15. Uninsurability** – The Consultant shall be relieved from the obligation to take out or procure the taking out of project-specific insurances to the extent the Project risk is deemed uninsurable by reputable insurance providers.
- 16. Duration of Liability** – No longer than the minimum defects liability period mandated by local applicable law, from the completion of the scope (The Services) covered under the Agreement, or from the termination of the Agreement, whichever occurs earlier.
- 17. Force Majeure** – Neither Party shall be liable to the other Party for delays in performing the Services or for direct or indirect costs resulting from such delays where those delays arise from being affected through strikes, civil unrest, acts of terrorism, war (whether declared or not), acts of governmental authorities, exceptionally inclement weather or other natural phenomenon, or any other cause beyond the reasonable control or contemplation of either party.

COSTS EXCLUDED

- 18. Bonds & Guarantees** – The Fee does not allow for any advance payment bond, performance bond, retention or any form of guarantee(s). Should bonds be required, the cost associated with obtaining, maintaining and renewing such bonds or guarantees shall be added to the Fee.
- 19. Third Party Charges** – Fees or charges payable to authorities, utility providers or other 3rd parties to obtain information, approvals or certifications are excluded from the Fees.
- 20. Disputes** – Our scope excludes any services related to dispute resolution involving 3rd parties, or any adjudication, arbitration, litigation and insurance claims as well to serving as expert witness or consultant in connection with any public or private hearing, arbitration, or legal proceeding.
- 21. Reproduction** – Submissions will be provided as one set of softcopy and no more than the number of sets of hardcopy documentation proposed / agreed. Additional production of large-scale drawings (plots) or sets of hardcopy will be charged to the Client including a 10 % handling fee.

TAXES

- 22. VAT** – Fees herein allow for VAT that Nikken and each of our specialist sub consultants is subjected to in their respective location where the services are carried out, but contains no Saudi VAT whatsoever.

Should taxation legislation or regulations change or laws come into effect that change the applicable rate of VAT, either in Saudi Arabia or at the Consultant's location, the revised VAT will be charged in addition to the fees stated in the Proposal.

- 23. Offshore services** – Should the Consultant be required to carry out any services based in KSA ("onshore"), such services shall be carried out under separate contract and the resulting costs of establishing and maintaining a permanent establishment (PE) in KSA, as well as the KSA VAT, shall be borne by the Client, in addition to the fees associated with such services. This includes, but may not be limited to, cost of obtaining required licenses, office lease, costs associated with accounting and tax filing, visas, bank charges, etc.
- 24. KSA Withholding Tax** – The Client shall be responsible for making payment of the appropriate amount to DZIT in accordance with the Saudi tax code and provide the relevant certificates to the Consultant in a timely manner. Should the relevant tax law(s) change in ways that affect the WHT tax rate, the Consultants compensation shall be adjusted as necessary so as to ensure receipt by the Consultant of

the same net amount which the Consultant would have received had the change to the tax law not occurred.

TRAVEL

25. Travel Expenses – A specific number of person-trips from the Consultant's location (Tokyo) to the Client's location (Riyadh) is included in the Fee. Additional travel if requested by the Client shall be reimbursed at net cost based on the following conditions

- a. Business class airfare;
- b. Accommodation in 4-star+ properties;
- c. allowance for petty expenses / person / day of SAR 300

CHANGES & VARIATIONS

26. Variations – The Services contained within the Proposal are based on facts known at the time of submission of the Proposal including information provided by the Client.

Any additional Client requirement(s) or changes to the facts that informed the Proposal will be subject to a revised proposal.

Modifications to the scope, schedule and/or to the current design requested by the Client at any time may constitute a Variation requiring additional effort and incur additional fees. If the Consultant considers itself entitled to an Extension of Time and/or additional fees, it shall notify the Client as soon as possible, with particulars, and the Client shall respond within 14 days with their assessment.

Within 30 days from the initial notice, the Consultant shall submit its estimate of the quantum (time and remuneration) associated with the Variation.

If the event or circumstances that gave rise to the Variation are ongoing and no final estimate can be given within the aforementioned timeframe, the Consultant shall provide an interim estimate instead and a final estimate within 30 days from the date the event or circumstances ended. Additional fees shall be calculated using the agreed rates.

27. Additional Services – making revisions to drawings, specifications or other documents when such revisions are inconsistent with approvals or instructions previously given by the Client, including revisions made necessary by adjustments in the Client's program or Project budget, shall entitle the Consultant to reasonable adjustment of fees and schedule.

28. Overheads – Should changes to the scope require additional work by Specialist Sub Consultant(s), or require the employment of additional Sub Consultant(s) or the Consultant be required to employ a nominated Sub Consultant, the Consultant will charge an overhead of no less than 15% on the Sub Consultant(s) Fee(s). The Consultant reserves the right to refuse acceptance of a nominated Sub Consultant if there are concerns over their capabilities / performance.

29. Changes in Legislation – Design changes required by the enactment or revision of codes, laws or regulations after Commencement shall entitle the Consultant to reasonable adjustment of fees and schedule.

30. Project GFA – Fees are based on the GFA represented in the Request for Proposal dated 2020/06/04 and good for up to a +/-5% variance. Any further increase or decrease will be deemed to constitute Additional Services for which we will require additional fees.

SCHEDULE

31. Commencement – Services will be commenced when these conditions are satisfied:

- a. Signing of a Contract Agreement, including a sufficiently detailed baseline brief;
- b. Receipt of a written Notice to Proceed and;
- c. Receipt of the Advance Payment

32. Phase gates – Each design stage will only begin upon receipt of written Client approval (with comments, if any) of the previous stage.

The Fee assumes a linear progression of the development of the design, free from Client driven changes that require rework by Consultant. The Consultant shall be permitted to rely on approvals from the Client to advance the design, and shall not be required to advance the design in the absence of Client approvals at each phase gate.

Any additional work resulting from amendment of frozen design will be subject to agreement of additional fees.

Submitted work/packages shall be considered approved in their entirety if a Notice to Proceed into the subsequent stage is received without comments in regard to the previous stage.

33. Schedule delays – Our fees are based on services being provided continuously and in accordance with the proposed programme, and it is assumed that all other consultants employed by the Client for the project will be in place in a timely manner to avoid any delay or out of sequence working.

For delay, prolongation or disruption caused by reasons beyond our control and not due to no fault of the Consultant, including input / approvals / decisions to be received from the Client, authorities or third Parties not in the Consultant's employ, the Consultant reserves the right to claim additional fees, according to the duration of the delay and its impact on its workflow.

If Client approvals are delayed, the Consultant reserves the right, to request compensation for the time spent idle or, upon giving (7) days' notice, suspend services until approval is received. The Consultant shall have no liability for delays or any other damages resulting from delayed information, approvals, or decisions from the Client.

34. Tender Strategy – The Fee assumes a single Main Contractor to be awarded the entirety of the Works in accordance with the proposed Design Execution Strategy. Alternative tender strategies, fast-tracking or multiple staggered tenders will affect the design durations and fee.

35. Value Engineering – The Fee assume that the pre-concept competition entry forms the base for the further design without major comments and that the Client has a budget commensurate with the endeavor. Any value engineering, cost savings proposals or alternatives proposed by Contractors or 3rd Parties will result, if instructed for implementation by the Client, constitute additional Services for which the Consultant will seek additional fees and schedule.

SUSPENSION AND TERMINATION

36. Suspension – The Client shall give at least (14) days' notice if suspending all or parts of the Services. Upon the suspension of the Services, the Consultant shall be entitled to payment of the portion of the Fees up to the date of such suspension.

Upon resumption of the Services any completion date(s) shall be adjusted to take into account any period of suspension and the Consultant shall be entitled to reasonable, additional and actual out of pocket expenses incurred by the Consultant by reason of suspension and subsequent remobilisation of its workforce.

If suspension continues for more than 180 days, the Consultant shall be entitled to terminate the remainder of the Services, upon giving (30) days' notice to the Client, unless the Client instructs the resumption of the Services or an extension to the suspension period is mutually agreed in writing.

37. Termination – Without limiting its other rights or remedies, either Party may terminate the Agreement

with immediate effect by giving written notice to the other Party if the other Party commits a material breach of any term of the Agreement.

In the event of termination, the Client shall make payment to the Consultant for all invoices and amounts outstanding at the date of termination and for that part of the Services completed up to the time of termination and all expenses incurred in terminating the Services.

DISPUTE RESOLUTION

38. Dispute Resolution – As for disputes between the Consultant and the Client, each Party shall endeavor to resolve any dispute between them promptly and amicably and without resort to any legal process, if feasible within forty-five (45) days of issue of a written notice by one party to the other party of the existence of such dispute.

Within thirty (30) days of issue of such notice, the Parties shall meet in good faith to discuss such dispute. If the parties fail to resolve the dispute amicably within the 45-day period, either Party may refer the dispute to binding arbitration.

39. Arbitration rules – Any dispute, controversy, difference or claim arising out of or in connection with this contract, including any question regarding its existence, validity, interpretation, performance, breach or termination or any dispute regarding non-contractual obligation arising from or relating to it, shall be referred to and finally resolved by arbitration in accordance with the CI Arb Arbitration Rules for the time being in force (the “Rules”), which rules are deemed to be incorporated by reference in this clause.

The arbitration shall be conducted by three (3) arbitrators appointed in accordance with the Rules. The language of the arbitration shall be English and the seat (or legal place) of the arbitration and the venue of all hearings in connection with the arbitration shall be London, England, United Kingdom.

The arbitrators shall be empowered to, but are not required to, award reasonable legal fees (and any other costs of the dispute resolution process) to the prevailing party in any dispute, if such an award is equitable under the circumstances.

The arbitral award shall be made in English and be final and binding upon the Parties.

OTHER

40. Governing Law – This contract shall be interpreted and enforced under, and disputes shall be decided by, the law of the United Kingdom.

41. Severability – If any of the terms of the Terms and Conditions are for any reason held to be illegal, invalid, ineffective, inoperable or otherwise unenforceable, it shall be severed and deemed to be deleted from these Terms and Conditions and the validity and enforceability of the remainder of the Terms and Conditions shall not be affected or impaired thereby.

(END)

